IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re Patent Application of:	Reinaldo Javier Aguiar Marcano
Application Number:	19/561,223
Confirmation Number:	1850
Filing Date:	March 9, 2026
For:	SYSTEM AND METHOD FOR N-GRAM PARALLEL DATA ENCODING
Group Art Unit:	To Be Assigned
Examiner:	To Be Assigned

PETITION TO THE DIRECTOR UNDER 37 CFR § 1.183 TO SUSPEND PROSECUTION ON CONSTITUTIONAL DUE PROCESS AND NATIONAL DEFENSE GROUNDS [REQUEST FOR EXPEDITED ADMINISTRATIVE PROCESSING]

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

Reinaldo Javier Aguiar Marcano, the inventor prosecuting the above-identified patent application Pro Se as Applicant and Petitioner, respectfully petitions the Director of the United States Patent and Trademark Office under **37 CFR § 1.183** to suspend all prosecution and stay all procedural deadlines in this application for a period of six (6) months, or until such time as the Applicant is able to safely secure legal representation.

Petitioner further requests **expedited administrative processing** of this Petition based on urgent national security, sovereign interest, and national defense procurement grounds.

The required petition fee under **37 CFR § 1.17(f)** (Fee Code: 2462 for Small Entity) is authorized for payment concurrently herewith.

In support of this Petition, Applicant and Petitioner respectfully shows the following extraordinary circumstances:

I. INTENT OF THE PETITION

The purpose of this Petition is to protect a patent application of vital public, aerospace, and national security interest from procedural dismissal or involuntary abandonment. Due to an ongoing, coordinated state-court extrajudicial intervention that has resulted in the physical restraint of the pro se inventor, the systematic block of his postal correspondence, and an active emergency docketing before the Supreme Court of the United States, Applicant is currently legally and physically incapacitated from prosecuting this application or safely retaining patent counsel.

This Petition seeks to temporarily "freeze" the administrative status of this application to protect the underlying invention from loss, until the federal judiciary resolves the constitutional emergencies currently pending in the Supreme Court of the United States, after which Applicant intends to procure formal patent counsel to complete prosecution.

II. CREDENTIALS, INVENTOR TRACK RECORD, AND AEROSPACE SYNERGY

To establish credibility and assist the Office of Petitions in evaluating the high technological value of the targeted intellectual property, Applicant and Petitioner formally submits his established professional credentials as a technologist of record with the USPTO:

1. **Professional Stature:** Petitioner is a former Google Search Ranking Staff Engineer and a former Managing Director at Goldman Sachs.
2. **Demonstrated Patent Success:** Petitioner has a demonstrated history of successful patent prosecution before the USPTO and is the named sole inventor on two previously issued Google Inc. patents of significant commercial and operational relevance:

- **U.S. Patent No. 9,275,419 B1** (*"Method for building, expanding or complementing a social graph based on contact information"*, Issued March 1, 2016, Assignee: Google Inc.).
- **U.S. Patent Application Publication No. 2015/0205766 A1** (*"Serving combined resources to a browser client"*, Published July 23, 2015, Assignee: Google Inc.).

The technology in this cluster represents critical, foundational breakthroughs in optically-native computing and secure high-radix processing, specifically engineered to solve the massive physical, thermal, and weight constraints currently bottlenecking modern **aerospace** and quantum computing platforms.

These credentials demonstrate that the Petitioner is an established and successful inventor, and that the instant application represents highly sophisticated, high-value technology that demands serious, rigorous administrative protection.

III. THE OPTICAL COMPUTING TECHNOLOGICAL CLUSTER AND AEROSPACE NEXUS

This application is not an isolated filing, but rather a vital component of a tightly integrated, co-dependent **Optical Computing Technological Cluster** composed of fifteen (15) patent applications filed by the Petitioner. This cluster is technologically anchored to a central "many-to-one" technological hub:

1. **The Hub Application: Application No. 19/559,705** (Filing Date: 03/06/2026; Title: *"HIGH-BANDWIDTH, LOW-LATENCY DATA TRANSMISSION SYSTEM AND PROTOCOL"*). This core hub governs the foundational hardware optical link.
2. **The Daughter Applications:** The remaining thirteen (13) applications in the cluster represent specialized protocols, storage systems, switches, and network architectures that explicitly depend upon, cite, or implement the core optical link of Hub Application No. 19/559,705. This daughter group includes:

- **Application No. 19/561,236** (Title: *"PROTOCOL FOR PHYSICAL AND DATA-LINK LAYER ENCODING NEGOTIATION"*), which directly governs the lower-layer negotiation protocol for the 19/559,705 hub.
- **Application No. 19/561,259** (Title: *"PROTOCOL FOR ENCODING MAP ROTATION FOR FORWARD SECRECY"*), which provides encoding map rotation protocol for forward secrecy.
- **Application No. 19/561,223** (The Instant Application; Title: *"SYSTEM AND METHOD FOR N-GRAM PARALLEL DATA ENCODING"*), which implements parallel data encoding techniques across the optical link.
- **Application No. 19/561,228** (Title: *"METHOD FOR LEGACY PROTOCOL TUNNELING OVER A HIGH-CARDINALITY INTERFACE"*), which provides a method for legacy protocol tunneling over the high-cardinality interface.
- **Application No. 19/562,825** (Title: *"SYSTEM FOR AN OPTICALLY-NATIVE CENTRAL PROCESSING UNIT"*), which discloses a system for an optically-native central processing unit using the link.
- **Application No. 19/571,558** (Title: *"SYSTEM AND METHOD FOR HIGH-RADIX COMPUTING USING WAVELENGTH-DISCRIMINATING PHOTOTRANSISTORS"*), which implements high-radix computing using wavelength-discriminating phototransistors.
- **Application No. 19/562,847** (Title: *"APPARATUS FOR AN OPTICAL DATA FABRIC SWITCH"*), which discloses the physical apparatus for an optical data fabric switch.
- **Application No. 19/639,271** (Title: *"A HIGH-RADIX MASS STORAGE SYSTEM"*), which implements a high-radix mass storage system integrated with the bus.
- **Application No. 19/560,031** (Title: *"METHOD AND SYSTEM FOR PIXEL-BASED NETWORK ROUTING IN A MASSIVELY PARALLEL OPTICAL INTERCONNECT"*), which discloses pixel-based network routing in a massively parallel optical interconnect.
- **Application No. 19/560,038** (Title: *"OPTICAL COMPUTING ARCHITECTURE AND SYSTEM"*), which discloses the overall optical computing architecture and system.
- **Application No. 19/562,838** (Title: *"METHOD FOR ENERGY-EFFICIENT*

COMPUTING VIA CLOCK SPEED REDUCTION"), which implements energy-efficient computing via clock speed reduction inside the core.

- **Application No. 19/562,845** (Title: *"A PHYSICALLY DISAGGREGATED COMPUTING SYSTEM"*), which discloses a physically disaggregated computing system using optical links.
- **Application No. 19/639,219** (Title: *"A CENTRAL PROCESSING UNIT ARCHITECTURE FOR NATIVE PARAMETRIC AND SYMBOLIC COMPUTATION"*), which provides a central processing unit architecture for native parametric and symbolic computation.
- **Application No. 19/640,945** (Title: *"A METHOD FOR ASYNCHRONOUS SECURE COMMUNICATION WITH POST-HOC KEY DERIVATION"*), which implements a method for asynchronous secure communication with post-hoc key derivation to protect cryptographic payloads from high-throughput optical cryptanalysis.

The Aerospace Nexus: Traditional electrical data buses are completely inadequate to handle the massive sensor fusion and real-time computing throughput required by modern defense platforms—such as the F-35 Joint Strike Fighter's Technology Refresh 3 (TR-3) upgrade or Collaborative Combat Aircraft (CCA)—without exceeding strict weight and thermal dissipation boundaries. Optically-native computing architectures, which replace electrical I/O bottlenecks with a massively parallel optical interconnect and high-radix photoprocessing, are the *only* physical means to breach this computational barrier.

Because this application cluster directly encumbers the next-generation aerospace computing upgrades currently being commercialized by major defense contractors, any procedural or administrative attack that targets the Petitioner's physical liberty or blocks his mail represents an existential threat to this entire federal-interest technology family.

IV. CONSTITUTIONAL DUE PROCESS AND FIFTH AMENDMENT PROPERTY RIGHTS

Under established federal law, a patent application is a cognizable **private property interest** protected under the **Due Process Clause of the Fifth Amendment** of the United States Constitution.

The Administrative Procedure Act (APA) prohibits federal agencies, including the USPTO, from taking administrative actions that arbitrarily or capriciously deprive a citizen of their property without a meaningful opportunity to be heard.

Because the Applicant is currently subjected to a physical restraint (a void state Capias) and a systematic block of his physical United States Mail, Applicant is physically and administratively incapacitated from safely receiving notifications or meeting active prosecution deadlines.

Enforcing strict administrative deadlines or declaring these applications abandoned under these conditions would constitute a direct, unconstitutional deprivation of Applicant's 5th Amendment property rights by a federal agency without due process. Grounding this request under 37 CFR § 1.183 in these constitutional protections is necessary to preserve the administrative integrity of the record for potential judicial review by the Supreme Court of the United States.

V. STATEMENT OF EXTRAORDINARY FACTS, SOVEREIGN LICENSE, AND DFARS EXHIBITS

An extraordinary situation exists under 37 CFR § 1.183 because of a severe and coordinated collision of physical restraint, mail obstruction, and active federal national defense procurement disputes:

1. **Unconstitutional Physical Restraint under Void Capias:** A state trial court in Fort Bend County, Texas, acting in direct violation of mandatory automatic stays, has issued a void civil Writ of Capias (arrest warrant) against the Applicant. This warrant has been weaponized by technical and civil adversaries to subject the Applicant to a continuous threat of physical arrest, resulting in a constructive *de facto* confinement within his office space. This physical restraint completely prevents the Applicant from traveling to secure registered patent counsel or safely managing his affairs.

2. **Systematic Obstruction of United States Mail:** Furthermore, as documented in active court records, Applicant's physical residence and corporate office have been systematically targeted by third-party adversaries who falsely designated the properties as "vacant" with the United States Postal Service, blocking and returning critical paper

correspondence from the USPTO, including notifications and official Office Actions.

3. **Active Supreme Court of the United States Proceeding:** The legality of this Capias warrant, the systematic regional due process deprivations, and the obstruction of Applicant's correspondence are currently the subject of an active **Emergency Application for Writ of Injunction and Stay** pending before the **Supreme Court of the United States** under **Docket No. 26A39** (submitted to Circuit Justice Samuel A. Alito, Jr.), as well as a companion **Petition for an Extraordinary Writ of Habeas Corpus** filed on July 16, 2026.

4. **Active Sovereign Interest and Whistleblower Retaliation:** This entire technology cluster is of critical public and national sovereign interest. As drafted and filed in the specification of Hub Application No. 19/559,705, the Applicant has granted a perpetual, royalty-free, non-exclusive license to the United States Government and its agencies to practice and use the invention worldwide for any and all governmental and defense purposes. This technology is also the subject of a **Formal Administrative Claim for Patent Infringement under DFARS 227.7004** filed by the Applicant with the Department of Defense. Applicant has put on formal legal notice the financial institutions holding stock of the affected public companies.

   Applicant has reason to believe that his technical adversaries, facing immense technical and financial liabilities under the DFARS claim, have actively engineered these state-court civil traps and mail blocks specifically to force the procedural dismissal or involuntary abandonment of this critical application cluster, thereby attempting to neutralize the public-interest claims.

Incorporation of Cryptographically Verified DFARS Exhibits: To establish the objective reality of this federal procurement dispute and national security interest, Applicant attaches directly to the end of this Petition the following cryptographically verified administrative claims submitted under **DFARS 227.7004** to the Senior Leadership of the Department of Defense and the General Counsel of targeted defense contractors:

- **Exhibit E-1:** Administrative Infringement Claim under DFARS 227.7004 submitted to the F-35 Joint Program Office (JPO) Contracting Directorate and Lockheed Martin Corporation, concerning the F-35 Technology Refresh 3 (TR-3) integrated core processor, dated April 17, 2026 (appended immediately following page 7 of this petition).

- **Exhibit E-2:** Administrative Infringement Claim under DFARS 227.7004 submitted to the Army Contracting Command and the National Geospatial-Intelligence Agency, concerning Palantir Technologies (Project TITAN) and Anduril Industries (Collaborative Combat Aircraft and Ghost Drones), dated April 17, 2026 (appended immediately following Exhibit E-1).
- **Exhibit E-3:** Master Administrative Infringement Claim under DFARS 227.7004 concerning Mobile, Portable, and Virtual Reality hardware/software procurements across the DoD Enterprise Software Initiative (ESI), dated June 5, 2026 (appended immediately following Exhibit E-2).

VI. INCORPORATION BY REFERENCE OF THE MASTER LITIGATION RECORD

To establish the objective, certified facts of this extraordinary situation, and to avoid unnecessary administrative duplication, Applicant and Petitioner formally **incorporates by reference the Master Litigation Record** currently e-filed and active within the file wrapper of companion **Hub Application No. 19/559,705**.

Specifically, the Director is directed to the formal **Information Disclosure Statement (IDS) filed in Application No. 19/559,705 on July 31, 2026**, which is fully incorporated herein by reference, and to the following specific Non-Patent Literature (NPL) items:

1. **NPL Item (j) — Sullivan & Cromwell Correspondence (Incorporated from 19/559,705):** E-filed on July 31, 2026, in Application No. 19/559,705 as file 19-559-705-NPL-_j_Sullivan-Cromwell-Fax-12125583804.pdf, this document contains the *"Chain of Correspondence with Sullivan & Cromwell LLP / RE: JPMorgan Chase & Co./Compliance"* (dated July 30-31, 2026). This of-record correspondence establishes that international financial compliance networks have been formally engaged with the immense liability and infringement risks posed by this specific technology cluster, proving the direct economic motive of the adversaries to force its procedural abandonment.
2. **NPL Item (d) — Certified Disclosure Log (Incorporated from 19/559,705):** E-filed on July 31, 2026, in Application No. 19/559,705 as file 19-559-705-NPL-_d_...,

this document contains the *"Federal Patent Docket, Vol. I: The Certified USPTO Disclosure Log Exposing Corporate Lawfare and Securing Sovereign Defense Assets"* (published July 28, 2026), documenting the systematic, county-wide efforts of adversaries to disrupt Applicant's patent portfolio.

Applicant and Petitioner requests the Director to retrieve and review these active of-record documents directly from the file wrapper of Application No. 19/559,705 to verify the extreme measures being deployed to obstruct this prosecution.

VII. COMPLIANCE WITH 37 CFR § 1.183 AND THE REQUEST FOR RELIEF

Under **37 CFR § 1.183**, the Director may suspend or waive any non-statutory requirement of the regulations when an extraordinary situation exists and justice requires.

Applicant does not seek to waive any statutory requirements under Title 35 of the United States Code. Rather, Applicant seeks a temporary suspension of the USPTO's administrative rules under **37 CFR § 1.103(a)** (Suspension of Action) to waive the requirement that no reply be outstanding, and to protect this application while the physical and legal constraints are resolved by the federal courts.

Justice heavily requires this waiver. Denying this petition would allow hostile third parties to successfully co-opt state judicial power and mail delivery blocks to destroy a critical federal-interest asset, causing irreparable harm to both the inventor and the sovereign licensee.

VIII. PRAYER FOR RELIEF

WHEREFORE, Applicant and Petitioner respectfully prays that the Director:

1. Find that an extraordinary situation exists under 37 CFR § 1.183 where the interests of justice and the constitutional protections of the **Fifth Amendment** require the waiver of non-statutory administrative rules;

2. Grant **immediate expedited processing** of this Petition on National Defense and Aerospace procurement grounds;

3. Waive the strict response deadlines for any outstanding pre-exam notifications, including the Notice to File Missing Parts;

4. Order a **six-month administrative suspension of all prosecution** under 37 CFR § 1.103(a), to be renewed upon request if necessary, to protect this application from procedural dismissal or abandonment; and

5. Direct that all electronic notifications and correspondence in this application be routed to Applicant and Petitioner's secure registered email address (reinaldo.aguiar.marcano@isbn9781971481296.com) to bypass the physical mail block.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/

Reinaldo Javier Aguiar Marcano, Pro Se Applicant and Petitioner
Date: August 1, 2026

EXHIBIT E-1

ADMINISTRATIVE PATENT INFRINGEMENT CLAIM SUBMITTED TO THE F-35 JOINT PROGRAM OFFICE (JPO) UNDER DFARS 227.7004 CONCERNING LOCKHEED MARTIN DATED APRIL 17, 2026

Reinaldo Aguiar Marcano
2302 Britton Ridge Drive, Katy TX 77494
https://xislist.org/ (ISBN 9781971481296)

FORMAL ADMINISTRATIVE CLAIM FOR PATENT INFRINGEMENT UNDER DFARS 227.7004 AND NOTIFICATION OF PROCUREMENT IRREGULARITIES CONCERNING PERPETUALLY LICENSED TECHNOLOGIES

This notice:
https://storage.googleapis.com/rj-aguiar/01_DFARS_227.7004_Lockheed-Martin.pdf

TO: PROCURING CONTRACTING OFFICERS (PCOs) AND DIRECTORS

michael.schmidt@us.af.mil (Lt. Gen. Mike Schmidt, Program Executive Officer, F-35 JPO)

F-35 Joint Program Office (JPO) – Contracting Directorate

CC: EXECUTIVE LEADERSHIP, CORPORATE COUNSEL, AND MILITARY IP COUNSEL

kevin.j.oconnor@lmco.com (Kevin J. O'Connor, Legal Counsel, Lockheed Martin)

craig.martell@lmco.com (Craig Martell, Vice President and Chief Technology Officer, Lockheed Martin)

valerie.browning@lmco.com (Valerie Browning, Vice President of Research and Technology, Lockheed Martin)

emil.michael@osd.mil (The Honorable Emil Michael, Under Secretary of Defense for Research and Engineering / Chief Technology Officer)

Chief of the Intellectual Property Law Division (JALS-IP), U.S. Army Legal Services Agency

RE: ACTUAL KNOWLEDGE OF PATENT INFRINGEMENT (35 U.S.C. § 154(d)), INITIATION OF DFARS 227.7004 ADMINISTRATIVE CLAIM, AND NOTIFICATION OF POTENTIAL PROCUREMENT FRAUD BY LOCKHEED MARTIN CORPORATION

DATE: April 17, 2026

DELIVERY METHOD: Cryptographically Verified via Registered Email (RPost)

DEAR:

Lt. Gen. Schmidt and the F-35 JPO Contracting Directorate,

ISBN 9781971481296

This comprehensive technical and legal brief is served upon you in your official capacities within the United States Department of Defense (DoD).

This document constitutes a formal Administrative Claim for Patent Infringement under the Defense Federal Acquisition Regulation Supplement (DFARS) 227.7004. The purpose of this claim is to notify the United States Government of a highly anomalous and legally precarious situation involving the unauthorized commercialization of a foundational patent portfolio by Lockheed Martin Corporation.

I. THE U.S. DEPARTMENT OF DEFENSE LICENSE GRANT AND STRATEGIC BLOCKADE

Under standard operating procedures defined by 28 U.S.C. § 1498, the United States Government exercises eminent domain over domestic patents, shielding its defense contractors from civil injunctions and assuming financial liability for infringement.

However, the inventor of the Aguiar Marcano Intellectual Property Portfolio—which comprises 52 foundational patent applications published defensively in *The Architecture of Control* (ISBN 978-1-97-148129-6)—has proactively granted an irrevocable, perpetual, no-fee license to the federal government for all national defense purposes. The United States Department of Defense, specifically through Under Secretary of Defense Emil Michael, has been placed on direct notice of this license grant and is the designated authority administering this license on behalf of the military.

Lockheed Martin is currently utilizing these specific patented architectures to overcome severe computational bottlenecks in their aerospace and quantum programs. By embedding the research, development, and licensing costs of these technologies into multi-billion-dollar government contracts, Lockheed Martin is effectively charging the American taxpayer for intellectual property that the government already possesses the legal right to utilize indefinitely and without cost. Failing to halt the disbursement of funds to this contractor for pre-licensed intellectual property constitutes a gross mismanagement of taxpayer dollars.

II. Satisfaction of DFARS 227.7004 Administrative Claim Requirements

To compel immediate administrative intervention, this communication strictly adheres to the requirements of DFARS 227.7004(a) and (b):

1. **Allegation of Infringement:** We formally allege that the systems provided and developed by Lockheed Martin directly infringe upon the patent applications detailed

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below.

2. **Request for Compensation:** Because the government holds a free license to this portfolio, our request for compensation is a formal legal demand that the DoD immediately cease compensating Lockheed Martin for the licensed intellectual property.
3. **Citation of Patents:** The infringed applications include USPTO 19/639,219; 19/560,038; 19/562,838; and 19/562,845.
4. **Identification of Procurements:** See Section III below for the specific systems and contracting activities.
5. **Element-by-Element Comparison:** The required claim maps demonstrating precisely how the representative claims map to the accused software and processes are attached to this verified transmission.

III. Technological Nexus and Targeted Procurements

Lockheed Martin's most critical modernization efforts intersect directly with our proprietary claims, making their government contracts highly susceptible to this administrative review.

A. F-35 Technology Refresh 3 (TR-3) and the Integrated Core Processor

Responsible Activity: F-35 Joint Program Office (JPO)

The TR-3 upgrade is designed to modernize the computational core of the F-35 via a new L3Harris integrated core processor and a new aircraft memory unit, promising a 25x computing increase. Attempting to achieve this massive increase in computational throughput within the strict thermal and weight constraints of an airborne fighter requires abandoning traditional electrical data buses.

- **USPTO 19/560,038 (Optical Computing Architecture) & USPTO 19/562,838 (Energy-Efficient Computing via Clock Speed Reduction):** These patents define a holistic data fabric that replaces electrical I/O bottlenecks with a massively parallel optical interconnect, enabling a reduction in clock speed while maintaining high throughput. Any TR-3 processor upgrades utilizing internal optical data buses to mitigate thermal output directly infringe upon these hardware claims.
- **USPTO 19/639,219 (Central Processing Unit Architecture for Native Parametric and Symbolic Computation):** Upgrading the F-35's core processing capabilities to handle

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advanced sensor fusion natively relies upon our parametric high-radix architecture.

B. Strategic Quantum Computing and QML Partnerships

Responsible Activity: Lockheed Martin Research and Technology / Defense Innovation Unit (DIU)

Target Leadership: Craig Martell (CTO) and Valerie Browning (VP, Research & Technology)

Lockheed Martin is aggressively pursuing quantum technologies for aerospace and defense, recently signing strategic collaborations with PsiQuantum (November 2025), Xanadu (February 2026), and Fujitsu (February 2026). These partnerships focus on deploying fault-tolerant quantum algorithms, Quantum Machine Learning (QML), and dual-use AI/ML edge computing.

- **USPTO 19/562,845 (Physically Disaggregated Computing Systems):** To achieve the hybrid quantum-classical workflows required by these new partnerships, Lockheed Martin must utilize a disaggregated architecture where classical GPUs and quantum processing units (QPUs) are segregated yet interconnected via an ultra-high-bandwidth data fabric. This exact hybrid integration model is legally encumbered by our portfolio.

IV. Statutory and Ethical Mandates

Because Lockheed Martin operates as a publicly traded corporate entity bound by strict compliance and ethical frameworks, we must formally remind your corporate leadership and legal counsel of the following obligations:

1. SEC Disclosure Requirements for Public Companies

For Lockheed Martin Corporation, we remind you that if you find yourselves potentially infringing any of the Inventions covered in this intellectual property portfolio, you are legally obligated to assess whether it is necessary to notify your investors and file a material risk disclosure notice with the Securities and Exchange Commission (SEC). The failure to disclose a material intellectual property encumbrance that threatens your core aerospace platforms (such as the F-35) constitutes a severe breach of fiduciary duty.

2. Attorney Ethical Obligations (Model Rule 8.3)

A direct reminder is issued to the Chief Legal Officers, General Counsels, and all retained outside counsel receiving or reviewing this notice (including Kevin J. O'Connor): You are strictly bound by your ethical obligations, including ABA Model Rule of Professional Conduct 8.3. You maintain an affirmative obligation to report any unprivileged knowledge of wrongdoing that raises a substantial question as to a lawyer's honesty, trustworthiness, or fitness. If your internal audits reveal evidence of coordinated intellectual property theft or procurement fraud that

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may compromise the integrity of a court, you are ethically mandated to report such conduct to the appropriate professional authorities.

V. Immutable Audit Trail and Mandatory Administrative Action

This formal claim is delivered via Registered Email (RPost). This service provides an immutable, cryptographically verified audit trail, including proof of delivery, message content, and the exact official time of sending and opening.

As warranted Procuring Contracting Officers, if you receive cryptographically verified proof that a contractor is charging the government for freely available intellectual property, your failure to initiate an audit or halt payments leaves a permanent digital footprint of your inaction. This exposes you to severe administrative and potentially criminal liability for complicity in procurement fraud.

Pursuant to federal acquisition regulations, you are hereby mandated to freeze approvals related to the disputed intellectual property, halt the assumption of clear title for the F-35 TR-3 upgrades, and forward this communication immediately to the Intellectual Property Law Division of your respective branches.

V/R,

Reinaldo Aguiar Marcano

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https://xislist.org/ (ISBN 9781971481296)

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EXHIBIT E-2

ADMINISTRATIVE PATENT INFRINGEMENT CLAIM SUBMITTED TO THE U.S. ARMY CONTRACTING COMMAND UNDER DFARS 227.7004 CONCERNING PALANTIR TECHNORIES AND ANDURIL INDUSTRIES, DATED APRIL 17, 2026

Reinaldo Aguiar Marcano
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https://xislist.org/ (ISBN 9781971481296)

FORMAL ADMINISTRATIVE CLAIM FOR PATENT INFRINGEMENT UNDER DFARS 227.7004 AND NOTIFICATION OF PROCUREMENT IRREGULARITIES CONCERNING PERPETUALLY LICENSED TECHNOLOGIES

This notice:
https://storage.googleapis.com/rj-aguiar/01_DFARS_227.7004_Plantir-and-Anduril-Industries.pdf

TO: PROCURING CONTRACTING OFFICERS (PCOs) AND DIRECTORS

william.a.creech3.civ@army.mil (William A. Creech, Grants and Contracting Officer, ACC-APG)

mia.a.steele2.civ@army.mil (Mia A. Steele, Procurement Officer, ACC-APG)

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jonathan.elliott@army.mil (Jonathan Elliott, Director AI Rapid Capabilities Cell, CDAO)

AFLCMCJAWorkFlowmail@us.af.mil (General Contracting Office, Air Force Life Cycle Management Center)

CC: EXECUTIVE LEADERSHIP AND MILITARY INTELLECTUAL PROPERTY COUNSEL

The Honorable Emil Michael (Under Secretary of Defense for Research and Engineering / Chief Technology Officer)

Chief of the Intellectual Property Law Division (JALS-IP), U.S. Army Legal Services Agency

RE: ACTUAL KNOWLEDGE OF PATENT INFRINGEMENT (35 U.S.C. § 154(d)), INITIATION OF DFARS 227.7004 ADMINISTRATIVE CLAIM, AND NOTIFICATION OF POTENTIAL PROCUREMENT FRAUD BY PALANTIR TECHNOLOGIES AND ANDURIL INDUSTRIES

DATE: April 17, 2026

DELIVERY METHOD: Cryptographically Verified via Registered Email (RPost)

DEAR:

Mr. Creech, Ms. Steele, Ms. Jenkins, Mr. Robinson, Ms. Winnert, Mr. Elliott, and the AFLCMC

ISBN 9781971481296

Contracting Office,

This comprehensive technical and legal brief is served upon you in your official capacities as warranted Procuring Contracting Officers (PCOs) and Directors within the United States Department of Defense (DoD).

This document constitutes a formal Administrative Claim for Patent Infringement under the Defense Federal Acquisition Regulation Supplement (DFARS) 227.7004.[1] The purpose of this claim is to notify the United States Government of a highly anomalous and legally precarious situation involving the unauthorized commercialization of a foundational patent portfolio by major defense contractors—namely Palantir Technologies and Anduril Industries.[1]

I. The Jurisprudential Paradox: Eminent Domain vs. The Perpetual License

Under standard operating procedures defined by 28 U.S.C. § 1498, the United States Government exercises eminent domain over domestic patents, shielding its defense contractors from civil injunctions and assuming financial liability for infringement.[1]

However, the situation at hand introduces a critical jurisprudential paradox. The inventor of the Aguiar Marcano Intellectual Property Portfolio—which comprises 52 foundational patent applications published defensively in *The Architecture of Control* (ISBN 978-1-97-148129-6)—has proactively granted an irrevocable, perpetual, no-fee license to the federal government for all national defense purposes.[1] Consequently, the U.S. Government owes absolutely no royalties for the utilization of these systems.[1]

The legal friction immediately shifts. Defense contractors (Palantir and Anduril) are currently utilizing these specific patented architectures and subsequently embedding the research, development, and licensing costs of these technologies into their multi-billion-dollar government contracts.[1] They are effectively charging the American taxpayer for intellectual property that the government already possesses the legal right to utilize indefinitely and without cost.[1]

This scenario transcends standard patent infringement; it borders on procurement fraud, waste, and abuse of federal funds.[1] Failing to halt the disbursement of funds to these contractors for pre-licensed intellectual property constitutes complicity in corporate intellectual property theft and a gross mismanagement of taxpayer dollars.[1]

II. Satisfaction of DFARS 227.7004 Administrative Claim Requirements

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To compel immediate administrative intervention, this communication strictly adheres to the requirements of DFARS 227.7004(a) and (b):[1]

1. **Allegation of Infringement:** We formally allege that the systems provided by Palantir Technologies and Anduril Industries directly infringe upon the patent applications detailed below.[1]
2. **Request for Compensation:** Because the government holds a free license to this portfolio, our request for compensation is a formal legal demand that the DoD immediately cease compensating the infringing contractors for the licensed intellectual property.[1]
3. **Citation of Patents:** The infringed applications include USPTO 19/639,219; 19/640,945; 19/560,038; 19/560,065; 19/559,957; 19/559,873; and 19/559,842.[1]
4. **Identification of Procurements:** See Section III below for the specific systems and contracting activities.[1]
5. **Element-by-Element Comparison:** The required claim maps demonstrating precisely how the representative claims map to the accused software and processes are attached to this verified transmission.[1]

III. Technological Nexus and Targeted Procurements

The operational methodologies of Palantir Technologies and Anduril Industries intersect directly with these proprietary claims, making their government contracts highly susceptible to this administrative review.[1]

A. Palantir Technologies (Project TITAN & Project Maven)

Responsible Activities: Army Contracting Command - APG (Belvoir Division) & National Geospatial-Intelligence Agency / CDAO[1] **Notified PCOs/Directors:** William A. Creech, Mia A. Steele, Tamara N. Jenkins, Undra Robinson, Emely Winnert, and Jonathan Elliott.[1]

Palantir's flagship platforms, Gotham and Foundry, specialize in integrating massive datasets to construct complex dependency graphs utilized by intelligence agencies.[1]

- **USPTO 19/559,957 (Power Holder Analysis in Social Networks):** Palantir's analytical methodologies for Project TITAN and Project Maven directly mirror our systemic method for analyzing network dependency graphs to identify indispensable bottlenecks.[1]
- **USPTO 19/559,873 (Information Leak-Proofing of Organizations):** Palantir's internal security infrastructure infringes upon our method of calculating precise "blast radius" vulnerability scores for individual users.[1]

ISBN 9781971481296

B. Anduril Industries (Collaborative Combat Aircraft & Ghost Drones)

Responsible Activities: Air Force Life Cycle Management Center (AFLCMC) & U.S. Special Operations Command (USSOCOM)[1] **Notified PCOs:** AFLCMC General Contracting Office[1]

Anduril relies heavily on Lattice OS to formulate a real-time command and control center for autonomous systems.[1]

- **USPTO 19/559,842 (Coordinated Dual-Vehicle Scanning):** The deployment of autonomous, multi-modal surveillance systems operating in tandem is heavily encumbered by our patent, which explicitly claims the methodology for coordinating multiple scanning vehicles via a secure link to fuse multi-spectral data.[1]
- **USPTO 19/560,065 (Autonomous Robotic Data Logistics):** Anduril's operations in contested environments intersect directly with our claimed mechanisms for using autonomous robotic units to physically retrieve and transport high-capacity data payloads.[1]

IV. Immutable Audit Trail and Mandatory Administrative Action

This formal claim is delivered via Registered Email (RPost). This service provides an immutable, cryptographically verified audit trail, including proof of delivery, message content, and the exact official time of sending and opening.[1]

By delivering this DFARS-compliant claim via RPost, we establish undeniable "Actual Notice" under 35 U.S.C. § 154(d).[1] More importantly, this verified delivery strips the targeted military and civilian agencies of "plausible deniability."[1]

As warranted Procuring Contracting Officers, if you receive cryptographically verified proof that a contractor is charging the government for freely available intellectual property, your failure to initiate an audit or halt payments leaves a permanent digital footprint of your inaction.[1] This exposes you, as individual officials, to severe administrative, ethical, and potentially criminal liability for gross negligence, dereliction of duty, or complicity in procurement fraud.[1]

Pursuant to federal acquisition regulations, you are hereby mandated to halt the assumption of clear title, freeze approvals related to the disputed intellectual property, and forward this communication immediately to the Chief of the Intellectual Property Law Division (JALS-IP) within your respective military branches.[1]

Govern yourselves accordingly.

ISBN 9781971481296

Works cited

1. DoD Patent License Infringement Investigation.pdf

ISBN 9781971481296

EXHIBIT E-3

MASTER UNIFIED ADMINISTRATIVE INFRINGEMENT CLAIM CONCERNING ENTERPRISE SOFTWARE AND MOBILE PROCUREMENTS SUBMITTED UNDER DFARS 227.7004 TO THE DoD CHIEF INFORMATION OFFICER (CIO), DATED JUNE 5, 2026

Gmail **RJ Aguiar, JR. <rj.aguiar.m@gmail.com>**

Registered: UNIFIED ADMINISTRATIVE PATENT INFRINGEMENT CLAIM CONCERNING MOBILE, PORTABLE, AND VIRTUAL REALITY HARDWARE/ SOFTWARE PROCUREMENTS ACROSS THE DoD ENTERPRISE SOFTWARE INITIATIVE (ESI) AND ARMY CHESS CONTRACT VEHICLES

1 message

RJ Aguiar via RPost <rmail@r1.rpost.net> Fri, Jun 5, 2026 at 7:35 PM
Reply-To: rj.aguiar.m@gmail.com
To: dodesi@mail.mil, stacy.watson.civ@army.mil, "andi.fehl.civ@army.mil" <pete.hegseth@mail.mil>, mike.rogers@mail.house.gov, armed_services@sec.senate.gov, emil.michael@mail.mil, jals-ip@mail.mil, adams.k@apple.com, tim.cook@apple.com, jternus@apple.com, snadella@microsoft.com, satya.nadella@microsoft.com, hnowbar@microsoft.com, spichai@google.com, android-legal@google.com, zuck@meta.com, jnewstead@meta.com, townes-whitleyt@saic.com, legal@tesla.com, saic.legal@saic.com
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This is a Registered Email™ message from **RJ Aguiar**.

FORMAL ADMINISTRATIVE CLAIM FOR PATENT INFRINGEMENT

UNDER DFARS 227.7004 AND NOTIFICATION OF PROCUREMENT IRREGULARITIES

DELIVERY METHOD: Cryptographically Verified via Registered Email (RPost)

DATE: June 5, 2026

STATUS: Actual Notice Conferred Pursuant to 35 U.S.C. § 154(d)

DISTRIBUTION LIST

TO: PROCURING CONTRACTING OFFICERS (PCOS) AND ENTERPRISE DIRECTORS

Office of the DoD Chief Information Officer (CIO)
DoD Enterprise Software Initiative (ESI) Contracting Directorate
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U.S. Army Legal Services Agency
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Corporate Counsel and Executive Leadership for Target Entities:
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RE: UNIFIED ADMINISTRATIVE PATENT INFRINGEMENT CLAIM CONCERNING MOBILE, PORTABLE, AND VIRTUAL REALITY HARDWARE/SOFTWARE PROCUREMENTS ACROSS THE DoD ENTERPRISE SOFTWARE INITIATIVE (ESI) AND ARMY CHESS CONTRACT VEHICLES

Dear Directors, Procuring Contracting Officers, and Oversight Authorities:

This formal administrative claim is executed and served upon you in your official capacities pursuant to the **Defense Federal Acquisition Regulation Supplement (DFARS) 227.7004**. The purpose of this verified transmission is to place the United States Government on notice of structural procurement irregularities and potential systemic patent infringement involving active enterprise computing contracts.

To ensure administrative balance and avoid single-point communication friction, this claim is deliberately load-balanced across the senior procurement leadership of the **DoD Enterprise Software Initiative (ESI)** and **Army Computer Hardware, Enterprise Software and Solutions (CHESS)**, bypassing prior local filing nodes while establishing an immutable, cryptographically timestamped federal repository of notice.

Procedural Nuance on Recipient Distribution:
Pursuant to the mandates of DFARS 227.7004, the **TO** line of this claim is strictly restricted to the warranted Procuring Contracting Officers (PCOs) and Program Directors who possess the operational authority to mandate an

administrative audit or freeze disbursements. The affected commercial entities (Apple, Microsoft, Google, Meta) and their prime systems integrators (such as SAIC) are positioned strictly in the **CC** line. This ensures absolute "Actual Knowledge" is conferred under **35 U.S.C. § 154(d)** without diluting the mandatory administrative obligations placed upon the federal client.

I. THE JURISPRUDENTIAL PRAGMATISM: PERPETUAL LICENSE GRANT VS. CONTRACTOR MISAPPROPRIATION

Under standard operating parameters governed by **28 U.S.C. § 1498**, the United States Government possesses an eminent domain right over domestic intellectual property, shielding its vendors from civil injunctions while assuming financial liability for infringement.

However, this specific administrative claim introduces a critical, non-frivolous optimization: the primary inventor of the *Aguiar Marcano Intellectual Property Portfolio*—compiled within *The Architecture of Control* (**ISBN 978-1-97-148129-6**)—has proactively executed an **irrevocable, perpetual, world-wide, no-fee license grant** directly to the United States Federal Government and its military components for all national defense and intelligence operations.

Consequently, the U.S. Government owes **zero royalties or licensing fees** for the native utilization, implementation, or deployment of these secure architectures.

The structural irregularity shifts entirely to the targeted defense contractors and systems integrators:

- **Apple Inc., Microsoft Corp., Google LLC, and Meta Platforms, Inc.** actively manufacture, configure, and license the primary mobile devices, laptops, desktop operating systems (macOS, iOS, Windows, Chrome OS, Android), and virtual reality (VR) hardware/software suites utilized across the Department of Defense.
- Systems integrators, specifically **Science Applications International Corporation (SAIC)**, package, bundle, and deliver these commercial off-the-shelf (COTS) devices to the warfighter through multi-billion-dollar enterprise contract vehicles like the **DoD ESI** and **Army CHESS** frameworks.

If these targeted contractors are embedding the research, development, or implementation costs of hardware-level parallel features, secure data fabric connectivity, or cryptographic primitives covered by the Aguiar Marcano portfolio into their federal delivery scales, **they are charging the American taxpayer for intellectual property that the U.S. Government already owns for free.**

This claim is framed constructively. This is not an attack on the technical capabilities of Apple, Microsoft, Google, Meta, or SAIC; rather, it is a **proactive measure to protect their corporate reputations and the integrity of federal procurement.** Conducting a comprehensive procurement audit is in the best interest of all parties to ensure transparency, insulate the agencies from secondary compliance liabilities, and secure immediate cost-mitigation discounts on active hardware and software rollouts.

II. TECHNICAL CONNECT-THE-DOTS: PATENT PROFILES AND SYSTEMIC NEXUS

The targeted hardware delivery streams intersect directly with the core claims of the Aguiar Marcano portfolio. Because the executive leadership of the target entities possesses an elite technical background, this claim provides a detailed granular breakdown of the specific technological touchpoints encumbered by these patents.

1. USPTO # 19/571,566: METHOD AND SYSTEM FOR DE-ANONYMIZING RADIO FREQUENCY SIGNALS VIA A ***DISTRIBUTED SENSOR ARRAY***

Target Systems: Apple iOS, Google Android, and Microsoft Windows mobile network stacking, baseband processors, and location-services infrastructure integrated across DoD mobile deployments.

The Nexus: Modern military operations rely heavily on the anonymity of cellular and mobile data packet routing. If an adversary covertly injects localized signal-monitoring frameworks into the consumer supply chains of these primary mobile operating systems, they can track device coordinates using nanosecond-level Time of Arrival (ToA) differentials. This patent explicitly claims the decentralized architecture required to identify, isolate, and neutralize these hidden de-anonymization grids. Any enterprise mobile endpoint deployed via SAIC that utilizes dynamic cell-site signal triangulation or baseband monitoring directly intersects this sovereign defense framework.

2. USPTO # 19/560,042: METHOD AND SYSTEM FOR HIGH-BANDWIDTH, FREE-SPACE OPTICAL DATA EXCHANGE BETWEEN MOBILE DEVICES

Target Systems: Meta/Oculus Virtual Reality (VR) hardware/software architectures, Apple Silicon (M-series/A-series) hardware fabrics, and high-speed device-to-device local file sharing protocols (e.g., AirDrop, Nearby Share).

The Nexus: To bypass traditional, interceptible radio-frequency (RF) channels in contested operational environments, tactical mobile units and virtual reality headsets require high-bandwidth, short-range, unguided free-space optical connections. This patent protects the specific data-link layer mechanics where data is encoded as a rapid sequence of multi-wavelength light frames utilizing "channel elements" (logical super-pixels) to remain robust against physical movement, focus drift, and angular misalignment. Meta’s advanced wireless VR data-streaming protocols and Apple's proximity-based file transfer fabrics direct mirror this spatial light architecture.

3. USPTO # 19/559,608: METHOD AND SYSTEM FOR A GEO-INDEXING COVERT LEDGER

Target Systems: macOS, iOS, Windows, and Android secure core storage subsystems, enterprise mobile device management (MDM) platforms, and SAIC-integrated secure database solutions.

The Nexus: Secure information logging across distributed military networks requires data persistence without relying on centralized, capture-prone relational databases. This patent defines a "DIOSDADO" geo-index architecture where data payloads and transaction parameters are steganographically embedded into geographical and spatial index registries by applying mathematical transformations (such as out-of-range coordinate scaling). Operating systems and secure storage solutions utilizing location-anchored cryptographic metadata blocks directly deploy this pre-licensed infrastructure.

4. USPTO # 19/645,194: A SYSTEM FOR CRYPTANALYSIS BASED ON PARAMETRIC DENOISING OF A PUBLIC KEY

Target Systems: Apple macOS, Windows 11, Chrome OS, and enterprise software security layers deployed via DoD ESI.

The Nexus: Traditional public-key cryptography (RSA, ECC) implemented across commercial operating systems treats key validation as a brute-force numerical sequence. This patent introduces a paradigm shift by processing public keys as complex, noisy signals and applying parameterized modular filters to isolate and eliminate mathematical "impossible overlaps." Any system-level cryptographic authentication kernel utilizing signal-processing denoising or modular pattern-matching heuristics to accelerate key validation or cryptanalysis is encumbered by this portfolio.

III. NOTICE OF POTENTIAL RETALIATION AND DATA SPOLIATION RISKS

Warranted Contracting Officers are formally alerted to a synchronized chronological pattern of extrajudicial duress that has emerged immediately following prior DFARS submissions to the Pentagon. On the business day following the execution of administrative claims regarding Lockheed Martin, Palantir, and Anduril, highly irregular civil court

maneuvers were initialized within the 387th District Court of Fort Bend County, Texas (Case No. 25-DCV-328122), culminating in the manual, ad-hoc alteration of digital docket timestamps via the Tyler Technologies Odyssey infrastructure.

These localized enforcement actions—aimed at executing a forced physical conversion of corporate computing hardware holding source-code infrastructure—suggest an asymmetric retaliatory mechanism deployed to disrupt the federal reporting line. Because the U.S. Government maintains a direct property interest in these pre-licensed technologies, any coercive attempt to restrict the inventor or compromise corporate hardware directly threatens national defense procurement sovereignty. This context is fully detailed in the accompanying records submitted before the Supreme Court of Texas under Cause No. 26-0511.

IV. ENCLOSURE AND DATA PRESERVATION LOGISTICS

To ensure that the extensive clinical data verifying these procurement risks is accurately ingested into the Pentagon's automated archival and email auditing compliance systems without network formatting bottlenecks, **all published compendiums are deliberately attached to this verified email in lightweight, unredacted Plain Text (.txt) format.**

The complete, stamped PDF editions comprising official court instruments, eFiling verification receipts, and electronic registers of actions can be accessed and downloaded free of charge by visiting the following permanent repositories:

- *The Capias and the F-35 Program* (Full PDF): https://www.isbn9781971481296.com
- *Inventions Portfolio & Letter of License Grant* (Full PDF): https://www.Capias-F35.US
-

SCHEDULE OF ATTACHED ENCLOSURES:

- **01__DFARS-227.7004-Lockheed-Martin.pdf** (Certified Copy of Prior Administrative Filing)
- **02__DFARS-227.7004-Plantir-and-Anduril-Industries.pdf** (Certified Copy of Prior Administrative Filing)
- **03__NOTICE-OF-POTENTIAL-RETALIATORY-MECHANISMS.pdf** (Immutable Status Update and Risk Report)
- **04__ISBN 9781105250286 "The Capias and the F-35 Program" .txt** (Complete Volume / Library of Congress Control No. 2025924729)
- **05__ISBN-9781971481296-Portfolio-of-Patent-Applications-Submitted-to-the-USPTO-by-Reinaldo-Aguiar.txt** (Comprehensive Patent Specifications and Claims Map)
- **06__USPTO-19_699-028__Letter-of-License-Grant-to-the-US-Federal-Government.pdf** (Executed Federal National Defense License Instrument)
- **07__USPTO_Application_Atomic-Express-Logistics-System.pdf** (Core High-Radix Mesh Control Specifications)

V. MANDATORY ADMINISTRATIVE ACTION REQUIRED

As warranted Procuring Contracting Officers managing billions of dollars in active COTS hardware and software procurement cycles, the delivery of this DFARS claim strips your respective commands of "plausible deniability."

Pursuant to federal acquisition regulations, you are hereby mandated to:

- **Initialize an immediate administrative review** and cost-accounting audit of all active hardware, operating system, and VR platform delivery structures provided by Apple, Microsoft, Google, Meta, and SAIC.
- **Halt the assumption of clear title** or final execution of upcoming product refreshes that incorporate the pre-licensed parametric, free-space optical, or signal-denoising architectures without an audited price adjustment.
- **Forward this comprehensive brief immediately** to the Chief of the Intellectual Property Law Division (JALS-IP) within your respective military branches for formal inter-agency tracking.

Govern yourselves accordingly.

Respectfully submitted,

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The formal administrative claim provided above contains verified details regarding the strategic alignment between federal procurement protection and patent asset mapping. To explore how parallel optical signaling models can be visually simulated inside distributed computing frameworks, you can review this analysis: Real-time Parallel Simulation Mechanics. This specific segment details the timing logs and file metadata necessary to audit automated network pipelines.

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7 attachments

01__DFARS-227.7004-Lockheed-Martin.pdf
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02__DFARS-227.7004-Plantir-and-Anduril-Industries.pdf
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